

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Stacy Paver	Team: Team # 4	CCRB Case #: 201016767	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 11/14/2010 1:38 AM	Location of Incident: § 87(2)(b)	Precinct: 120	18 Mo. SOL 5/14/2012	EO SOL 5/14/2012	
Date/Time CV Reported Fri, 12/03/2010 3:52 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 12/08/2010 1:14 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Ronald Capursi	07276	941497	120 PCT
2. POM Omar Birchwood	21286	945512	120 PCT
3. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Michael Hull	17803	925485	120 PCT
2. POM Dominick Delvecchio	08773	917519	120 PCT
3. POM Keith Corbett	25341	941588	120 PCT
4. LT Albert Isaac	00000	919216	120 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Omar Birchwood	Abuse: PO Omar Birchwood stopped § 87(2)(b)	§ 87(2)(b)
B.POM Omar Birchwood	Abuse: PO Omar Birchwood frisked § 87(2)(b)	§ 87(2)(b)
C.POM Omar Birchwood	Abuse: PO Omar Birchwood searched § 87(2)(b)	§ 87(2)(b)
D.POM Ronald Capursi	Force: PO Ronald Capursi used physical force against § 87(2)(b)	§ 87(2)(b)
E. An officer	Force: An officer used physical force against § 87(2)(b)	§ 87(2)(b)
§ 87(2)(g), § 87(4-b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On December 3, 2010, § 87(2)§ 87(2)(b) filled out a CCRB complaint form that was faxed to IAB (encl. 8). The CCRB received IAB log § 87(2)(b) on December 8, 2010. § 87(2)(b) reported that on November 14, 2010, at approximately 1:38 a.m., officers responded to § 87(2)(b) in Staten Island in regard to an assault in progress. § 87(2)(b) was arrested § 87(2)(a) 160.50 § 87(2)(b). The following allegations resulted from the officers' actions:

- **Allegation A-Abuse of Authority:** PO Omar Birchwood stopped § 87(2)(b)
- **Allegation B-Abuse of Authority:** PO Omar Birchwood frisked § 87(2)(b)
§ 87(2)(g)
- **Allegation C-Abuse of Authority:** PO Omar Birchwood searched § 87(2)(b)
§ 87(2)(g)
- **Allegation D-Force:** PO Ronald Capursi used physical force against § 87(2)(b)
§ 87(2)(g)
- **Allegation E-Force:** An officer used physical force against § 87(2)(b)
§ 87(2)(g)
- § 87(4-b), § 87(2)(g)

§ 87(2)(g)

Results of Investigation

Civilian Statement(s)

Complainant/Victim: § 87(2)(b)
§ 87(2)(b) is a § 87(2)(b) black male § 87(2)(b), with black hair and brown eyes.

IAB Testimony

On December 3, 2010, § 87(2)(b) filled out a CCRB complaint report, which was faxed to IAB. § 87(2)(g) (encl. 8).

CCRB Testimony

On December 16, 2010, § 87(2)(b) was interviewed at the CCRB (encl. 12-18). On November 14, 2010, at approximately 1:38 a.m., § 87(2)(b) and his girlfriend, § 87(2)(b) went to § 87(2)(b) in Staten Island to visit § 87(2)(b)'s sister, § 87(2)(b)'s boyfriend, § 87(2)(b) resides at this location. § 87(2)(b), § 87(2)(b)'s father § 87(2)(b) and his teenage brother § 87(2)(b) were also inside the house. § 87(2)(b) and § 87(2)(b) had an argument and § 87(2)(b) called 911. § 87(2)(b) did not hear what § 87(2)(b) reported to 911. Shortly after the call, § 87(2)(b) exited the house and walked toward the street. A patrol car parked near the driveway. PO Omar Birchwood, who was identified by § 87(2)(b) by his shield number, and Lt. Albert Isaac, who was identified through the investigation, both assigned to the 120th Precinct, exited the car and approached § 87(2)(b). § 87(2)(b) described Lt. Isaac as a white male who is 6'0" tall, weighs 180 pounds, in his 20's, with dirty blonde hair. § 87(2)(g)

§ 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) exited the house. § 87(2)(b) stood in the driveway. § 87(2)(b), § 87(2)(b), and § 87(2)(b) showed the officers where § 87(2)(b) was. § 87(2)(b) wore brown-green pants, black and white sneakers, a white shirt with blue and burgundy stripes, a green hoodie, and a black hat. § 87(2)(b) wore blue jeans, no shirt, and black boots. PO Birchwood asked § 87(2)(b) what was going on two times. § 87(2)(b) responded that he did not know. Lt. Isaac approached § 87(2)(b). PO Birchwood told § 87(2)(b) to turn around and stand with the front of his body against a white van. PO Birchwood frisked § 87(2)(b). PO Birchwood reached his right hand inside § 87(2)(b)'s right back pocket and pulled out his wallet. PO Birchwood asked § 87(2)(b) if he had identification. § 87(2)(b) asked PO Birchwood to give him his wallet so that he could provide his identification. PO Birchwood did not search any of § 87(2)(b)'s other pockets.

Lt. Isaac and § 87(2)(b) approached PO Birchwood. PO Birchwood handed § 87(2)(b)'s identification to Lt. Isaac. #### and § 87(2)(b) exited the house at this time. § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) followed Lt. Isaac and § 87(2)(b) to the police car. As § 87(2)(b) was placed against the rear of the police car, Lt. Isaac called § 87(2)(b) "§ 87(2)(b)." § 87(2)(b) took two steps closer toward Lt. Isaac and stated that he was § 87(2)(b). PO Birchwood stood behind § 87(2)(b) and did not say anything. Lt. Isaac told § 87(2)(b) to step back. Three to four additional police cars arrived. PO3 exited one of the additional police cars and approached Lt. Isaac and § 87(2)(b). Lt. Isaac gave § 87(2)(b)'s identification to PO3. § 87(2)(b) described PO3 as a white male officer in a white shirt who is 200 pounds, "tall," and with gray hair. There were approximately eight police cars in total at the scene.

PO Ronald Capursi, who § 87(2)(b) identified by his shield number and who is assigned to the 120th Precinct, approached § 87(2)(b) and told him to step back. § 87(2)(b) replied that he was fifteen feet away from Lt. Isaac. Lt. Isaac told him to step back. § 87(2)(b) stood still with his arms to his side and his hands behind him so that PO Birchwood could see them. PO Capursi pushed § 87(2)(b).

§ 87(2)(b)'s right shoulder with his right hand. As a result, § 87(2)(b) lost his balance and fell on the ground. § 87(2)(b)'s left side made contact with an officer behind him that he did not see as he fell. § 87(2)(b) did not push any officer during the incident. § 87(2)(b)'s left side of the face hit the ground. As § 87(2)(b) landed on the ground on his left side, his hands were behind his back. PO Capursi placed his left knee below § 87(2)(b)'s arm that was behind his back and placed his left hand on § 87(2)(b)'s upper back, while he was hitting § 87(2)(b) alternately with his closed right fist and right knee in the upper right side of his face and right side of his head. § 87(2)(b) felt approximately five other hands pressing his side, back, and legs. He was unable to see these officers. None of these officers hit him.

PO Capursi told § 87(2)(b) to put his hands behind his back, and § 87(2)(b) said that his hands were behind his back and asked PO Capursi why he hit him. PO Capursi punched § 87(2)(b) five to seven times in his head and shoved his head with his knee approximately nine times. As a result, § 87(2)(b)'s head was swollen in the upper right area and he had a lump below his right eye. § 87(2)(b) suffered a cut on his left temple due to the fall. § 87(2)(b)'s glasses broke during this altercation. PO Capursi lifted § 87(2)(b) off the ground and handcuffed him. § 87(2)(b) was inside the patrol car at this time. § 87(2)(b) was placed inside the car across the street, and PO Capursi and PO Keith Corbett, assigned to the 120th Precinct and who was identified through the investigation, transported him to the stationhouse. § 87(2)(b) did not ask for medical attention and no officer asked him for any. § 87(2)(b) did not seek medical attention after he was released.

Witness: § 87(2)(b)

CCRB Testimony

On January 6, 2011, § 87(2)(b) provided a telephone statement to the CCRB (encl. 21). On November 14, 2010, § 87(2)(b) exited § 87(2)(b)'s house in front of him and was in the driveway when two to three officers approached him, grabbed him right away, and pushed him against a van. § 87(2)(b) could not describe any of the officers. § 87(2)(b) placed his hands on the van. § 87(2)(b) told the officers, "You were called for me." Lt. Albert Isaac, who was identified through the investigation, approached § 87(2)(b). Three to four officers restrained § 87(2)(b) next to the van. § 87(2)(b) stated, "Let me go," but did not resist. The officers had § 87(2)(b) on the ground. § 87(2)(b) did not state how § 87(2)(b) got to the ground. § 87(2)(b) asked the officers why they were "slamming" § 87(2)(b). § 87(2)(b) was escorted to a police car and could no longer see § 87(2)(b). There were between six and seven police cars present. § 87(2)(b) could not describe any officer and stated that there were uniformed and plainclothes officers present. § 87(2)(b)'s father, § 87(2)(b), and his brother, § 87(2)(b), were present during this incident in addition to § 87(2)(b), § 87(2)(b), and § 87(2)(b).

Witness: § 87(2)(b)

§ 87(2)(b) provided a telephone statement to the CCRB on January 6, 2011 (encl. 20). On November 14, 2010, § 87(2)(b) called 911 to report a domestic dispute because her boyfriend § 87(2)(b) pushed her during a dispute. § 87(2)(b) did not mention a gun in her complaint. When the officers arrived, § 87(2)(b) was in front of the house with § 87(2)(b). § 87(2)(b) was also in front of the house. § 87(2)(b) told the officers that she made a call for § 87(2)(b). A black male officer, who was identified by the investigation and § 87(2)(b) as PO Omar Birchwood, stayed with § 87(2)(b).

and handcuffed him in front of a van. Lt. Albert Isaac, who was identified by the CCRB, approached § 87(2)(b) and asked what she wanted to do in regard to § 87(2)(b). Lt. Isaac was a Hispanic or white male who was between 35 and 45-years -old. PO Birchwood took § 87(2)(b)'s identification after he was handcuffed. PO Birchwood escorted § 87(2)(b) to the sidewalk. § 87(2)(b) did not make any movements, and one of the officers held onto his arm. § 87(2)(b) did not describe this officer. Five to six officers approached § 87(2)(b) while he asked why he was arrested. § 87(2)(b) could not describe these officers. The officers grabbed him and tackled him facedown to the ground. The officers "smashed" § 87(2)(b)'s face and breast against the ground and held him on his shoulders, knees, and back. § 87(2)(b) heard from the officers that a gun was reported, and she stated that she did not report any gun.

More officers arrived and an unidentified female officer pushed § 87(2)(b) and her sister, § 87(2)(b) as she told them to move back. § 87(2)(b) stated that she did not want to file a complaint against this officer. EMS was called for § 87(2)(b) and § 87(2)(b). Three to four patrol cars were at the scene by the end of the incident. § 87(2)(b) observed that § 87(2)(b) was pushed against the ground by the unidentified female officer and suffered a cut on her face. She was not arrested. § 87(2)(b) provided § 87(2)(b) telephone number, but did not know her mailing address. § 87(2)(b) could not describe any other officer.

Attempts to Contact Civilians

§ 87(2)(b)
On December 29, 2010, the CCRB sent a contact letter and called § 87(2)(b) leaving a message on her voicemail requesting that she return the call. On January 3, 2011, the telephone number for § 87(2)(b) was called and the number was no longer in service. A search of LexisNexis yielded a telephone number and the same address § 87(2)(b) provided for § 87(2)(b). On January 6, 2011, the CCRB called § 87(2)(b) at the number provided by LexisNexis. § 87(2)(b)'s friend answered the phone and stated that this phone number is § 87(2)(b)'s cellular telephone number, but § 87(2)(b) was not available to speak at the time. Her friend confirmed § 87(2)(b)'s mailing address. A message was left with the friend to have § 87(2)(b) contact the CCRB. On January 10, 2011, and January 11, 2011, the CCRB called § 87(2)(b) and left messages requesting that she contact the CCRB. On January 10, 2011, § 87(2)(b) was sent a contact letter. To date, no letters were returned to the CCRB and there has been no response from § 87(2)(b).

§ 87(2)(b)
On January 7, 2011, and January 10, 2011 the CCRB called § 87(2)(b). Her number was not in service. § 87(2)(b) did not know her address. A search of LexisNexis yielded no one with the name § 87(2)(b) in New York or New Jersey. § 87(2)(b) did not contact the CCRB and therefore did not provide contact information for § 87(2)(b). To date, § 87(2)(b) has yet to be located.

§ 87(2)(b)
On January 7, 2011, the CCRB called § 87(2)(b). He requested to call the CCRB back and stated that his son, § 87(2)(b) was § 87(2)(b) and he did not want him to provide a statement to the CCRB. On January 10, 2011, the CCRB called § 87(2)(b). He stated that he was in the middle of something and hung up the phone. To date, there has been no further response from § 87(2)(b).

§ 87(2)(b)

On January 11, 2011, and January 31, 2011, letters in English and Spanish were sent to § 87(2)(b), the address next to the incident location. To date, there has been no response from anyone at § 87(2)(b).

NYPD Statement(s):

Subject Officer: PO OMAR BIRCHWOOD

- PO Birchwood is a § 87(2)(b) old black male § 87(2)(b), with brown eyes and black hair.
- On November 14, 2010, PO Birchwood worked from 11:15 p.m. through 7:50 a.m., was assigned as the lieutenant operator, worked with Lt. Isaac, and wore a uniform (encl. 75-89).

Memo Book

PO Birchwood had no entries in his memo book regarding the incident (encl. 22-23).

CCRB Testimony

On May 23, 2011, PO Omar Birchwood was interviewed at the CCRB (encl. 24-25). On November 14, 2010, at 1:38 a.m., PO Birchwood and Lt. Isaac received a radio call for an assault in progress at § 87(2)(b) in Staten Island. PO Birchwood could not recall what information was provided. They were the first responding officers. There were some females in front of the location and two males. It appeared that the two males were fighting because they were yelling. PO Birchwood could not recall what they stated and at whom they were yelling. Lt. Isaac approached the house and spoke with a female who was identified through the investigation as § 87(2)(b). PO Birchwood could not hear the conversation from where he stood. Lt. Isaac stopped one of the males, who was identified through the investigation as § 87(2)(b) while PO Birchwood stopped the other male, identified through the investigation as § 87(2)(b). Lt. Isaac handcuffed § 87(2)(b). PO Birchwood was not certain if there were other males at the scene or if a description of the perpetrator was provided over radio. No female pointed at the perpetrator upon the officers' arrival.

PO Birchwood told § 87(2)(b) to stand against a vehicle and asked him questions in regard to what was going on. PO Birchwood asked § 87(2)(b) for his identification, but did not recall if § 87(2)(b) provided it. PO Birchwood stopped § 87(2)(b) because there was a violent crime in progress and § 87(2)(b) was within the vicinity of the location. PO Birchwood did not suspect that § 87(2)(b) was armed. PO Birchwood did not recall if he frisked § 87(2)(b) or searched him. He was not sure if he handcuffed § 87(2)(b). Other units arrived and PO Birchwood followed Lt. Isaac, who escorted § 87(2)(b) away from where § 87(2)(b) was. He did not recall where § 87(2)(b) was.

PO Birchwood did not recall if other officers interacted with § 87(2)(b) and could not recall if § 87(2)(b) attempted to approach § 87(2)(b) while he was with the officers. PO Birchwood did not observe § 87(2)(b) interfere with the arrest of § 87(2)(b). PO Birchwood did not recall which officers responded aside from PO Michael Hull and PO Dominick Delvecchio. PO Birchwood did not observe any officer push § 87(2)(b) punch § 87(2)(b) in his head, or shove a knee in § 87(2)(b)s.

head. PO Birchwood did not recall if any officer used any force against § 87(2)(b) PO Birchwood did not use any force against § 87(2)(b) and did not observe § 87(2)(b) struggle with any officers at any point. PO Robinson did not hear any officer give § 87(2)(b) any orders and did not recall if § 87(2)(b) was handcuffed or arrested. PO Birchwood stated that he thought that only § 87(2)(b) was arrested. PO Birchwood did not transport any arrestees.

Subject Officer: PO RONALD CAPURSI

- PO Capursi is a § 87(2)(b) -old white male § 87(2)(b), with brown hair and brown eyes.
- On November 14, 2011, PO Capursi worked from 11:15 p.m. through 7:50 a.m. He was assigned to Sectors E, F, G, and H, worked with PO Corbett, wore a uniform, and was assigned to marked vehicle 2329 (encl. 75-89).

Memo Book

PO Capursi's memo book is summarized as follows: At 1:38 a.m., he transported one male perpetrator from § 87(2)(b) to the 120th Precinct.

CCRB Testimony

PO Ronald Capursi was interviewed at the CCRB on June 30, 2011 (encl. 30-31). On November 14, 2011, PO Capursi recalled that his car was called to respond to the incident. He did not recall anything else in regard to the incident. PO Capursi was presented with § 87(2)(b)'s arrest photograph as well as a photograph taken of him at the CCRB. PO Capursi did not recognize § 87(2)(b) from these photographs. PO Capursi was told that it was a radio call for a domestic dispute and was presented with the arrest report. He did not recall that PO Delvecchio was present at this incident. PO Capursi did not recall anything from the arrest report. PO Capursi was presented with the SPRINT, which showed that at 1:38 a.m., sector E transported one person to the stationhouse. PO Capursi did not recall transporting anyone to the stationhouse. At no time did he and PO Corbett separate during their tour. PO Capursi stated that the incident address was familiar, but did not recall anything that occurred there.

Witness Officer: LT. ALBERT ISAAC

- Lt. Isaac is a § 87(2)(b) -old Hispanic male § 87(2)(b), with brown hair and brown eyes.
- On November 14, 2011, Lt. Isaac worked from 11:00 p.m. through 7:45 a.m. He was assigned as the platoon commander, worked with PO Birchwood, wore a uniform, and was assigned to marked vehicle 5795(encl. 75-89).

Memo Book

Lt. Isaac's memo book is summarized as follows: At 1:20 a.m., Lt. Isaac responded to § 87(2)(b) in regard a call for shots fired. Sector I had two under § 87(2)(b). Both perpetrators were intoxicated (encl. 44-45).

CCRB Testimony

On June 30, 2011, Lt. Isaac was interviewed at the CCRB (encl. 46-48). On November 14, 2011, a job came over at § 87(2)(b) for a gun run and a possible person shot. Lt. Isaac and PO Birchwood arrived and observed a male, identified through the investigation as § 87(2)(b) screaming loudly and cursing at § 87(2)(b). They approached § 87(2)(b) who had a strong smell of alcohol coming from his breath and appeared to be intoxicated. § 87(2)(b) was uncooperative and would not provide them with any information. Lt. Isaac did not observe any injuries on § 87(2)(b) when he first encountered him. PO Birchwood stopped § 87(2)(b) and frisked him. Lt. Isaac then went to deal with § 87(2)(b) who was down the street. Lt. Isaac did not pay further attention to PO Birchwood and § 87(2)(b). Lt. Isaac did not observe PO Birchwood search § 87(2)(b). No other officers were present at the time PO Birchwood frisked § 87(2)(b). Lt. Isaac did not issue § 87(2)(b) any instructions and did not hear PO Birchwood issue any instructions. Lt. Isaac did not observe how § 87(2)(b)'s identification was obtained.

Because it was a gun run, Lt. Isaac did not know what was going on and did not know if anyone was injured. Lt. Isaac instructed § 87(2)(b) to approach him because he did not want to go toward § 87(2)(b) who was a potential threat. § 87(2)(b) refused, took off his shirt, flexed his muscles, and told Lt. Isaac, "No. Why don't you come over here so I can kick your ass?" Lt. Isaac approached § 87(2)(b), searched him, and did not find a gun. A pregnant woman, who was identified through the investigation as § 87(2)(b), exited the house. Lt. Isaac found out that she was § 87(2)(b)'s girlfriend. § 87(2)(b) was intoxicated. Lt. Isaac asked her if she called the police. She stated that she did and explained that there was a birthday party there and everyone was drinking. She explained that § 87(2)(b) hit and pushed her. She wanted § 87(2)(b) to be placed under arrest. More people began to exit the house and acted disorderly and belligerent against the officers. Lt. Isaac called for additional units to respond because of the crowd of about five to six civilians. Lt. Isaac removed § 87(2)(b) to the sidewalk to get him away from the crowd. Shortly after, additional units responded.

Lt. Isaac did not recall if § 87(2)(b) attempted to approach him and § 87(2)(b). He did not tell § 87(2)(b) to step back or move away. Everyone from inside the house was also on the sidewalk and surrounded the officers. § 87(2)(b) was arrested § 87(2)(a) 160.50. He yelled and screamed throughout the incident. PO Delvecchio and PO Hull were assigned to the arrests. Several officers responded to the location, including sector E.

Lt. Isaac did not observe any officer push § 87(2)(b) on his shoulder and did not observe § 87(2)(b) on the ground at any time. Lt. Isaac did not observe any injuries on § 87(2)(b) at the conclusion of this incident. Lt. Isaac did not observe any officer hit § 87(2)(b) on the knee or head. Lt. Isaac did not have any physical encounter with § 87(2)(b). He did not observe if officers had difficulty placing § 87(2)(b) in handcuffs. Lt. Isaac did not observe any officer hit § 87(2)(b) with their knee. Lt. Isaac did not know if § 87(2)(b) pushed any officer. Lt. Isaac did not know who transported the arrestees to the stationhouse.

Witness Officer: PO MICHAEL HULL

- *PO Hull is a § 87(2)(b)-old white male who is § 87(2)(b), with brown eyes and brown hair.*
- *On November 14, 2010, PO Hull worked from 11:15 p.m. through to 7:50 a.m. He was assigned to sectors I, J, and K, worked with PO Delvecchio, wore a uniform, and was assigned to a marked patrol car (encl. 75-89).*

Memo Book

PO Hull's memo book is summarized as follows: At 1:16 a.m., PO Hull responded to a family dispute at § 87(2)(b). At 1:38 a.m., PO Hull had § 87(2)(b) under arrest § 87(2)(b) and PO Delvecchio had one under arrest § 87(2)(a) 160.50

CCRB Testimony

On March 8, 2011, PO Michael Hull was interviewed at the CCRB (encl. 58-59). On November 14, 2010, at approximately 1:38 a.m., a female called 911 to report a family dispute. An additional call came over the radio that the lieutenant needed assistance at the location. When PO Hull and PO Delvecchio responded, Lt. Isaac and two or three other police vehicles were present. PO Hull could not recall which officers were at the location. PO Hull spoke with Lt. Isaac and a female identified through the investigation as § 87(2)(b). Lt. Isaac told PO Hull that § 87(2)(b) was arrested § 87(2)(b). While between six and eight officers conducted an investigation with § 87(2)(b) who was already handcuffed, § 87(2)(b) approached those officers. The officers ordered him numerous times to step back and he refused. § 87(2)(b) stated that he wanted to speak with § 87(2)(b). PO Hull could not recall who told § 87(2)(b) to step back. PO Hull did not recall if § 87(2)(b) made any contact with any officer. When PO Hull and other officers tried to grab § 87(2)(b) to handcuff him, he flailed his arms. PO Hull did not recall the other officers who grabbed § 87(2)(b). The officers struggled to place § 87(2)(b)'s hands behind his back to handcuff him. § 87(2)(b) yelled and cursed at the officers the entire time, but PO Hull could not recall what he stated.

PO Hull did not recall if § 87(2)(b) was ever on the ground. He did not observe any officer push § 87(2)(b). PO Hull could not recall who transported § 87(2)(b) to the stationhouse. PO Hull did not punch § 87(2)(b) in his head or face or shove his knee into his head. He did not observe any other officer do so. PO Hull did not recall having a verbal interaction with § 87(2)(b) and did not observe him being frisked or searched. PO Hull did not observe any injuries on § 87(2)(b). § 87(2)(b) was charged § 87(2)(a) 160.50

Witness Officer: PO DOMINICK DELVECCHIO

- PO Delvecchio is a § 87(2)(b)-old white male § 87(2)(b), with brown hair and brown eyes.
- On November 14, 2010, PO Delvecchio worked from 11:15 p.m. through 7:50 a.m., was assigned to sectors I, J, and K, worked with PO Hull, wore a uniform, and was assigned to marked patrol car 5037 (encl. 75-89).

Memo Book

PO Delvecchio's memo book is summarized as follows: At 1:38 a.m., two were under arrest. One by PO Hull and one by PO Delvecchio. PO Delvecchio arrested § 87(2)(b) § 87(2)(a) 160.50. § 87(2)(b) "was asked to move back from arrest by PO Hull, perpetrator refused to move back; when police approached perpetrator, he pushed officers when officers asked to put hands behind back; he refused; flailed arms and resisted (encl. 33-34)."

Arrest Report

§ 87(2)(a) 160.50

Criminal Court Complaint

§ 87(2)(a) 160.50

CCRB Testimony

On March 16, 2011, PO Dominick Delvecchio was interviewed at the CCRB (encl. 42-43). On November 14, 2011, 1:38 a.m., PO Delvecchio and PO Hull received information over the radio about a domestic dispute at § 87(2)(b) and a lieutenant asked for additional units. When they responded to the location, Lt. Isaac, PO Birchwood, and three additional units in marked patrol cars were present. PO Delvecchio could not recall anything more specific about the call. § 87(2)(b) was already handcuffed at the time PO Delvecchio arrived and PO Hull was assigned to that arrest. § 87(2)(b) stood on the sidewalk and insisted that he needed to speak with § 87(2)(b). There were five or six civilians outside at this time. PO Delvecchio and other officers told § 87(2)(b) numerous times he could not speak with § 87(2)(b) and had to leave the premises. § 87(2)(b) refused to leave. PO Delvecchio and other officers, whom PO Delvecchio could not identify, approached § 87(2)(b) to handcuff him. § 87(2)(b) started pushing and flailing his arms. § 87(2)(b) was screaming and pushed a couple of the officers on their upper bodies. PO Delvecchio did not recall who handcuffed § 87(2)(b) and did not recall if § 87(2)(b) was asked for his identification.

Officers grabbed § 87(2)(b) by his arms and handcuffed him. The officers did not grab any other part of § 87(2)(b)'s body and he was not taken to the ground. PO Delvecchio did not push or observe any other officer push § 87(2)(b). He did not punch or observe any other officer punch § 87(2)(b) anywhere on his body. PO Delvecchio did not shove a knee into § 87(2)(b)'s head or face or observe any other officer do so. PO Delvecchio did not recall if any officer frisked or searched § 87(2)(b) before he was placed under arrest. PO Delvecchio did not observe any injuries on § 87(2)(b). PO Ronald Capursi and PO Keith Corbett were present as well.

Witness Officer: PO KEITH CORBETT

- PO Corbett is a § 87(2)(b) white male § 87(2)(b), with brown hair and brown eyes.
- On November 14, 2010, PO Corbett worked from 11:15 p.m. through 7:50 a.m. He was assigned to sectors EFGH, worked with PO Capursi, wore a uniform, and was assigned to marked RMP # 2329 (encl. 75-89).

Memo Book

PO Corbett's memo book is summarized as follows: At 1:38 a.m., PO Corbett transported one male to 120th Precinct stationhouse (encl. 60-62).

CCRB Testimony

On July 19, 2011, PO Corbett was interviewed at the CCRB (encl. 63-63). On November 14, 2010, PO Corbett arrived at the location after a call for assistance from Lt. Isaac and PO Birchwood. He

observed approximately 20 civilians at the location who stood in the street and sidewalk in the way of the officers. Two males were already placed in handcuffs when PO Corbett arrived. PO Corbett stated that numerous officers were present, but only recalled PO Delvecchio, PO Capursi, Lt. Isaac and PO Birchwood. PO Corbett did not recall which of the two males he transported to the stationhouse and could not provide a physical description of the male. He was shown § 87(2)(b)'s arrest photograph. PO Corbett did not recognize § 87(2)(b).

PO Corbett did not observe any officer frisk or search the males at the location of the incident. He did not observe either of the arrestees on the ground. PO Corbett did not hit or kick either of the males and did not observe any other officer do so.

Unknown officers placed one of the handcuffed males into PO Corbett's vehicle and he transported the male to the stationhouse with PO Capursi. The male argued and yelled at officers at the location before he was placed in the vehicle. PO Corbett did not observe any injuries on the male placed inside his vehicle. He did not recall if the male placed in his vehicle wore glasses. PO Corbett did not observe any of the arrestees push an officer. PO Corbett did not know why the individual he transported was under arrest.

NYPD Documents

SPRINT Report

A family assault in progress was called over the radio at § 87(2)(b) in Staten Island. A female caller stated that a male was being violent toward a female at the location. The 120th Precinct lieutenant arrived as well as sector I, sector C, sector M, sector E, and the patrol sergeant. It was found out that no one was shot at the location and no shots were fired after several officers responded. There were two arrests at the location. Sector M transported one male to the stationhouse and sector E transported another male to the stationhouse (encl. 66-73).

Police Radio Communications

The NYPD Dispatcher initially reported that there was a 10-34, shots fired, at § 87(2)(b) in Staten Island. Shortly after, the NYPD Dispatcher stated that there were no shots fired and it was a domestic dispute (encl. 65).

Arrest Photograph of § 87(2)(b)

The arrest photograph does not show any visible injuries. There is discoloration on § 87(2)(b)'s forehead, but a picture of him taken at the CCRB on December 16, 2010, approximately one month after this incident, shows the same discoloration (encl. 74).

Command Log

The command log showed that § 87(2)(b) was arrested § 87(2)(a) 160.50. He was listed in apparently normal physical condition (encl. 90).

Roll Call

The roll call showed that Lt. Isaac was assigned as the precinct lieutenant and PO Birchwood was the lieutenant operator. PO Capursi and PO Corbett were assigned to sector E. PO Delvecchio and PO Hull were assigned to sector I. PO Christopher Dagnese and PO Mark Fortunato were assigned to sector M. PO Ericka Dendy and PO Mauri Bailey were assigned to sector C (encl. 75-89).

Arrest for Incident and Disposition

- In regard to this case, § 87(2)(b) was arrested on November 14, 2010 § 87(2)(a) 160.50
§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)

Civilian(s) Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- § 87(2)(b) did not file a civil lawsuit.

Civilian(s) CCRB History

- § 87(2)(b) has not previously filed any CCRB complaints (encl. 7).

Officer(s) CCRB History

- PO Omar Birchwood is a four-year veteran of the NYPD and is assigned to the 120th Precinct. He has no substantiated allegations on his record (encl. 5).
- PO Ronald Capursi is a five-year veteran of the NYPD and is assigned to the 120th Precinct. He has no substantiated allegations on his record (encl. 6).

Conclusion

Identification of Subject Officer(s)

PO Birchwood and Lt. Isaac were the first officers at the location. PO Birchwood admitted that he initially interacted with § 87(2)(b) while Lt. Isaac interacted with § 87(2)(b) § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) identified PO Capursi by his shield number. He stated that he is the officer who pushed him on the shoulder and the officer who punched and kneed him in the face. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b) stated that an officer pushed § 87(2)(b) against the ground. § 87(2)(b) could not identify the officer who did this and § 87(2)(b) did not provide a statement to the CCRB. § 87(2)(g)

§ 87(2)(b)

Investigative Findings and Recommendations

Allegations Not Pleaded

§ 87(2)(b) and § 87(2)(b) stated that § 87(2)(b)'s glasses were damaged as a result of his interaction with officers on the ground. § 87(2)(b) could not explain how his glasses were damaged

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

Allegation A: Abuse of Authority: PO Omar Birchwood stopped § 87(2)(b)

Allegation B: Abuse of Authority: PO Omar Birchwood frisked § 87(2)(b)

§ 87(2)(b) alleged that when officers initially responded to the location, PO Birchwood immediately stopped and frisked him. PO Birchwood acknowledged that he stopped § 87(2)(b) but could not recall if he frisked him. Lt. Isaac confirmed that PO Birchwood frisked § 87(2)(b) when he approached him. No other officers were present. § 87(2)(g)

According to the NYPD Patrol Guide Manual § 212-11, an officer could stop an individual when he “reasonably suspects a person has committed, is committing or is about to commit a felony or a penal law misdemeanor.” In addition, officers can frisk an individual if they “reasonably suspect [they are] in danger of physical injury (encl. 1-3).” § 87(2)(b) was within the proximity to the scene of a suspected violent offense and officers had information from the NYPD dispatcher that there were shots fired and an assault was in progress. Both Lt. Isaac and PO Birchwood stated that when they arrived, § 87(2)(b) and § 87(2)(b) were outside of the house yelling at one another. § 87(2)(g)

Allegation C: Abuse of Authority: PO Omar Birchwood searched § 87(2)(b)

§ 87(2)(b) alleged that after he was frisked, PO Birchwood entered his right back pocket and pulled out his wallet. § 87(2)(b) was not under arrest at this time. PO Birchwood did not recall searching § 87(2)(b). Lt. Isaac stated that he did not observe PO Birchwood search § 87(2)(b). No other officers were present during this time. No witnesses stated that § 87(2)(b) was searched. § 87(2)(g)

Allegation D: Force: PO Ronald Capursi used physical force against § 87(2)(b)

§ 87(2)(b) alleged that PO Capursi pushed him on the right shoulder, which caused him to lose his balance and fall to the ground. He alleged that after he fell to the ground, PO Capursi hit him in the face with a closed fist between five and seven times, hit him in the head with his knee approximately nine times, and then placed him in handcuffs. § 87(2)(b) alleged that the upper right part of his head was swollen and he had a lump below his right eye. No officer stated that any officer punched § 87(2)(b) or hit him with a knee. Neither § 87(2)(b) nor § 87(2)(b) stated that any officer punched § 87(2)(b) or hit him with a knee. § 87(2)(b) did not request or seek medical treatment. The command log showed that § 87(2)(b) was in apparently normal condition and it did not list any injuries. § 87(2)(b)'s arrest photograph does not show any visible injuries. There is discoloration on § 87(2)(b)'s forehead, but a picture of him taken at the CCRB on December 16, 2010, approximately one month after this incident, shows the same discoloration. No officer observed any injuries on § 87(2)(b). No witnesses observed any injuries on § 87(2)(b). § 87(2)(g)

§ 87(2)(g) [Redacted]
[Redacted]
[Redacted]
[Redacted]

Allegation E: Force: An officer used physical force against § 87(2)(b)

§ 87(2)(g) [Redacted]
[Redacted]
[Redacted]

§ 87(4-b), § 87(2)(g) [Redacted]
[Redacted]

[Redacted]
[Redacted]
[Redacted]

[Redacted]
[Redacted]

[Redacted]
[Redacted]
[Redacted]

Team: Four

Investigator: _____ Stacy Paver _____ February 7, 2012
Signature Print Date

Supervisor: _____ _____ _____
Title/Signature Print Date

Reviewer: _____ _____ _____
Title/Signature Print Date